

24SMCV05485 24SMCV05485

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-24

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Case Number: 24SMCV05485 Hearing Date: June 24, 2026 Dept: M

CASE NAME: Watson v. the

Law Offices of Jacob Emrani, APC, et al.

CASE NO.: 24SMCV05485

MOTION: Motion to Compel Specific Performance;

Motion

to Shorten Deposition Notice

HEARING DATE: 6/24/2026

ANALYSIS

Plaintiff Julia A. Watson moves for

two orders against Defendant the Law Office of Jacob Emrani, including: 1) compelling

Defendant prove-up its quantum meruit attorney fee lien claim; and 2) permitting

Plaintiff to take the deposition of Emrani's PMQ.

Compel Prove Up

Plaintiff presents no procedural

authority for this motion. While the court has the authority to order the remedy of specific performance, such a remedy may only be imposed after trial or other procedurally proper motion. (Civ. Code § 3384.) If Plaintiff wants a declaration concerning the parties' respective positions on Defendant's lien claim, then Plaintiff will have to prove entitlement to such a declaration per her second cause of action at trial (or other procedurally proper motion, such as a motion for summary adjudication).

Shorten Notice Deposition

Plaintiff seeks leave under CCP

section 2025.210, which provides that a plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant. For good cause shown, the Court may grant leave for a plaintiff to serve a deposition notice on an earlier date.

Here, Plaintiff does not need leave

under section 2025.210. It has been more than 20 days since the service of summons and/or appearance by any defendant. Defendants appeared on December 17, 2024, and February 4, 2025. Indeed, even Defendant Emrani was served via sub-service on May 7, 2026. Substitute service was therefore complete on May 18, 2026, more than 20 days ago. Thus, leave is not necessary for plaintiff to

notice a deposition.

Conclusion

Accordingly, the motions are

DENIED.

Defendant's counter request to

compel arbitration is also DENIED. Defendant must make a noticed

motion/petition to compel arbitration.